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JUDGMENT SHEET

LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Writ Petition No.37823 of 2025

Shakil Ahmed Sheikh Vs. Pakistan Cricket Board (PCB)
through Chief Operating Officer
(COO) Gaddafi Stadium, Lahore,
etc.

JUDGMENT

Date of hearing:	10.03.2026
Petitioner by:	M/s Taffazul Haider Rizvi, Haider Ali Khan and Beenish Sikandar, Advocates.
Respondents No.1 & 2 /PCB by:	M/s Ch. Muhammad Usman, Ehtasham Mukhtar, Rida Hosain and Wajid Maqsood, Advocates.
Respondents No.4, 5 & 6 by:	Mr. Muhammad Hassan Malik, Advocate.
Respondent No.7/Federation of Pakistan by:	Mr. Khalid Nawaz Ghumman, Deputy Attorney General for Pakistan.

MALIK JAVID IQBAL WAINS, J. Through the instant Constitutional Petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, the petitioner has assailed the legality and vires of (i) Order dated 27.05.2025 passed by the Independent Adjudicator, Pakistan Cricket Board (PCB), Lahore (Respondents No.3), and (ii) letter dated 28.05.2025 issued by the Chief Operating Officer, Pakistan Cricket Board (Respondent No.1). It is asserted that by virtue of the aforesaid impugned order and consequential letter, the petitioner has been unlawfully restrained from performing his official functions and managing the affairs of the Zonal and Regional Cricket Associations, Islamabad.

2. Brief facts of the case are that the petitioner claims to be the elected President of the Regional Cricket Association (RCA), Islamabad and asserts that he has been associated with the promotion of cricket in Pakistan for several decades. It is stated that after repeal of the PCB Constitution, 2019

through notification dated 22.12.2022, the erstwhile PCB Constitution, 2014 was restored and a Management Committee was constituted by the Federal Government to manage the affairs of the PCB, of which the petitioner was also appointed a member. Thereafter, scrutiny of cricket clubs and District Cricket Associations was undertaken and elections of various District Cricket Associations and Zonal Cricket Associations were conducted under the supervision of the Election Commissioner, PCB. In this process, elections of the Zonal Cricket Associations of Islamabad were held and, since only one candidate contested against each post, the concerned office bearers were declared elected unopposed through notifications dated 16.03.2023 and 17.03.2023. Subsequently, election schedule for the RCA, Islamabad was issued on 17.03.2023 and the petitioner, being the sole candidate, was elected unopposed as President of RCA, Islamabad through notification dated 24.03.2023.

3. It is further the case of the petitioner that certain cricket clubs challenged the election process before the Islamabad High Court through different writ petitions. In those proceedings, interim orders were passed and eventually the matters relating to elections of Zonal and Regional Cricket Associations were referred to the Adjudicator in terms of the PCB Constitution through order dated 13.05.2024. The petitioner also filed an application under Section 12(2) CPC alleging that earlier proceedings before the Islamabad High Court had been initiated through concealment of material facts, however, through the aforesaid order the pending petitions and applications were converted into representations to be decided by the Adjudicator of PCB within a period of two months.

4. According to the petitioner, the proceedings before the Adjudicator were conducted in a questionable manner and without proper consideration of the petitioner's stance, culminating in the impugned order dated 27.05.2025 whereby the election process was interfered with and the petitioner's position as elected office bearer was adversely affected.

5. Consequent upon the said order, respondent No.1 issued a letter dated 28.05.2025 restraining the petitioner and other elected office bearers from performing their functions in relation to the affairs of the Zonal and

Regional Cricket Associations, Islamabad. Feeling aggrieved by the impugned order of the Adjudicator and the consequential restraining letter, the petitioner has invoked the constitutional jurisdiction of this Court.

6. Learned counsel for the petitioner contends that the PCB is a statutory body functioning under the Sports (Development and Control) Ordinance, 1962 and the Constitution framed thereunder, therefore, its actions are amenable to the constitutional jurisdiction of this Court under Article 199 of the Constitution. Further argues that after the change in the Federal Government, the PCB Constitution, 2019 was repealed through notification dated 22.12.2022 and the erstwhile PCB Constitution, 2014 was restored. Consequently, the structure of District Cricket Associations and Regional Cricket Associations stood revived and elections were required to be conducted in accordance with the so restored constitutional framework. Simultaneously, the Federal Government constituted a Management Committee (MC) to manage the affairs of PCB with full executive powers and the petitioner was also appointed a member of the said Management Committee.

7. It is maintained that after restoration of the 2014 Constitution, PCB initiated the scrutiny process of cricket clubs and associations across Pakistan and subsequently elections were held in about one hundred District Cricket Associations. Thereafter, the Election Commissioner, PCB issued the election schedule for the Zonal Cricket Associations of Islamabad along with the voters' list comprising East Zone, West Zone, North Zone, Central Zone Islamabad and Gilgit-Baltistan Cricket Association. According to learned counsel, the club of respondent No.4, i.e. Junoon Cricket Club, was not included in the voters' list as it had been declared inactive. The said respondents challenged the status before the Election Commissioner through an appeal which still remains pending adjudication.

8. Further asserts that the proceedings before the Adjudicator were initially taken up, who later recused himself upon objections raised by certain respondents, whereafter the present Adjudicator assumed jurisdiction. It is argued that the Adjudicator conducted the proceedings in a questionable manner and exhibited bias and predisposition against the petitioner.

According to the petitioner, despite his request seeking recusal of the Adjudicator and an application submitted to the Chairman PCB for his removal, the request was declined without providing any opportunity of hearing.

9. Learned counsel contends that the restraining letter dated 28.05.2025 issued by respondent No.1 was without lawful authority as such action could only have been taken by the Election Commissioner PCB, if unavoidable at all. It is also argued that the proceedings before the Adjudicator were conducted in a hasty manner without recording evidence, despite the fact that the Islamabad High Court had specifically observed that the controversy required proper evidentiary determination before the Adjudicator. The impugned order, therefore, is alleged to be based on presumptions and conjectures and in violation of the principles of natural justice.

10. It is also argued that the reason assigned by the Adjudicator regarding alleged conflict of interest of the petitioner on account of his membership of the Management Committee is misconceived and without legal basis. According to learned counsel, the notification constituting the Management Committee did not impose any restriction on its members for contesting elections. Furthermore, two other members of the Management Committee also contested elections of their respective RCAs and were elected unopposed without any objection being raised. The action against the petitioner alone is therefore discriminatory and reflective of bias.

11. Learned counsel further contends that the appeal filed by respondent No.4 regarding its status as an inactive club remains pending before the Election Commissioner, therefore, the said respondent had no lawful authority to challenge the election process or disturb a validly conducted election. The voters list for the election of RCA Islamabad election was complete and valid and the petitioner was elected in accordance with the PCB Constitution, 2014 and the Election Regulations, 2015. Reliance has been placed upon the following precedents i.e. Salahuddin and others vs. Frontier Sugar Mills and Distillery Ltd. (PLD 1975 SC 244), Muhammad Yousaf vs. Province of Sindh and others (2024 SCMR 1689), Ayaz and others

vs. Mustafa Saeed and others (2025 SCMR 216), Commissioner Inland Revenue, Karachi v. Pakistan Beverages Limited (2018 SCMR 1544), Muhammad Siddique Baloch vs. Jehangir Khan Tareen and others (PLD 2016 SC 97).

12. Conversely, learned counsel for respondents No.1 & 2 submits at the outset that the instant constitutional petition is not maintainable under Article 199 of the Constitution as the relief sought by the petitioner relates to enforcement of rules and regulations of the PCB, which are non-statutory in nature. It is argued that the Hon'ble Supreme Court of Pakistan has already held that the rules governing the affairs of PCB do not have statutory force and therefore cannot be enforced through constitutional jurisdiction. Consequently, any alleged violation of such internal regulations does not provide a valid ground for invoking the writ jurisdiction of this Court.

13. It is further contended that the Superior Courts in multiple judgments have consistently held that matters arising out of non-statutory rules or internal regulations of an organization are not amenable to constitutional jurisdiction. Learned counsel submits that the petitioner in fact seeks enforcement of the PCB Election Regulations, 2015, which are purely internal rules framed for the management of the affairs of the Board and do not possess statutory character. In view of this settled legal position, the instant writ petition is incompetent and liable to be dismissed on this ground alone.

14. Learned counsel next argues that the present dispute essentially involves serious factual controversies, which cannot be adjudicated in constitutional jurisdiction. According to him, the issues raised by the petitioner require detailed factual inquiry and examination of evidence, which can only be undertaken by a court of plenary jurisdiction. The constitutional jurisdiction of the High Court under Article 199 is limited in scope and is not meant for resolving disputed questions of fact. Therefore, the petitioner, if aggrieved, has an alternate remedy to seek redress before the appropriate forum through ordinary civil proceedings.

15. Further maintains that the allegations leveled by the petitioner regarding bias or unfairness on the part of the Adjudicator are wholly baseless and have been categorically denied. It is argued that the Adjudicator concerned is a former Judge of this Hon'ble Court and there exists no material whatsoever to doubt the fairness or integrity of the adjudicatory process undertaken by him. Mere allegations or assertions of bias, without any tangible evidence, are insufficient to disqualify a decision-maker or to invalidate the proceedings conducted by him.

16. It is also contended that no conspiracy exists to remove the petitioner from his position, and the entire process was conducted in accordance with the applicable rules. Learned counsel maintains that the adjudicatory proceedings were carried out lawfully and fairly and that the impugned order cannot be challenged merely on speculative allegations.

17. Learned counsel further maintains that the parties themselves had mutually agreed that formal recording of evidence was not necessary for the adjudication of the dispute before the Adjudicator. In such circumstances, the petitioner cannot now challenge the proceedings on the ground that evidence was not recorded. Moreover, when a matter involves factual disputes requiring evidentiary examination, the constitutional jurisdiction of this Court cannot be invoked. Reliance has been placed upon the following precedents: Ministry of Inter Provincial Coordination etc. vs. Arbab Altaf Hussain etc. (2014 SCMR 1573), Pakistan Telecommunication Company Ltd. vs. Muhammad Samiullah (2021 SCMR 998), Syed Nazir Gillani vs. Pakistan Red Crescent Society (2014 SCMR 982), Muhammad Ashraf vs. United Bank Limited (2015 SCMR 911), Muhammad Zaman and others vs. Government of Pakistan through Secretary Finance (2017 SCMR 571), Super Star Cricket Club vs. Federation of Pakistan (W.P. No.168/2019), Lahore High Court, Imran Rafique vs. Pakistan Cricket Board (W.P. No.235625/2018), Kaiser Garh Cricket Club vs. Pakistan Cricket Board, Lahore (W.P. No.29463/2023), Munda Eleven Cricket Club vs. Federation of Pakistan (PLD 2017 Lahore 802), Government of Khyber Pakhtunkhwa vs. Intizar Ali and others (2022 SCMR 472), Syed Iqbal Hussain Shah Gillani vs. Pakistan Bar Council (2021 SCMR 425), Pakistan WAPDA Employees Pegham Union

vs. Member, National Industrial Relations Commission (2014 SCMR 1676), Amir Jamal and others vs. Malik Zahoor and others (2011 SCMR 1023), Ch. Azhar Ali vs. Punjab Public Service Commission (PLD 2004 SC 4), The President vs. Mr. Justice Shaukat Ali (PLD 1971 SC 585), Ahmad Developers vs. Muhammad Saleh and others (2010 SCMR 1057), Fateh Yarn Pvt. Ltd. vs. Commissioner Inland Revenue (2021 SCMR 1133).

18. Learned counsel for respondents No.4, 5, and 6 submits that the present petition is merely an attempt by the petitioner to revive and legitimize an electoral process which has already been examined in detail and set aside by the Learned Independent Adjudicator of the PCB after due proceedings. It is contended that the real controversy before this Court is not whether the petitioner was elected unopposed, but whether the elections themselves were conducted through a lawfully prepared voters' list in accordance with the governing regulations. According to learned counsel, the Adjudicator, after examining the record and hearing all parties, rightly concluded that the elections of the Zonal and Regional Cricket Associations of Islamabad held in March 2023 were tainted with serious irregularities including manipulation of the voters' list, unlawful alteration of club status, violation of the prescribed scrutiny framework and conflict of interest on the part of the petitioner.

19. Learned counsel further argues that the record clearly demonstrates that the voters' list used for the elections was unlawfully manipulated, whereby historically recognized voter clubs such as Junoon Cricket Club and Muslim Cricket Club were removed, while several clubs which had never previously enjoyed voter status were inserted into the electoral list. In addition, various clubs were arbitrarily shifted between different zones without any regulatory process, thereby altering the list of eligible voters. It is also submitted that the elections were conducted in violation of the mandatory scrutiny requirements under the PCB Election Regulations, 2015, as the last lawful scrutiny of clubs had taken place in 2010 and no proper scrutiny was conducted for more than thirteen years. Such manipulation of the voters' list and artificial restructuring of electoral zones, according to learned counsel, strikes at the root of the electoral process and renders the elections legally unsustainable.

20. . It is further contended that the petitioner himself was a member of the PCB Management Committee, a body exercising executive authority over the affairs of the PCB, yet he simultaneously contested the election for the office of President of the Regional Cricket Association Islamabad, which clearly constitutes a conflict of interest and violates the principles embodied in the PCB Code of Ethics. Learned counsel maintains that the Adjudicator's findings regarding manipulation of the voters' list used for the election are based on record evidence and reflect the settled principle that the purity and integrity of electoral processes must be preserved; therefore, the impugned decision represents a lawful correction of a fundamentally compromised election and warrants no interference by this Court. Reliance has been placed upon the case laws titled Director Housing, A.G's Branch Rawalpindi vs. M/s Makhdum Consultants Engineers and Architects (1997 SCMR 988), Sughra Bibi vs. District and Sessions Judge, Lahore (2018 CLC Note 38), Ali Ahmed vs. Ghulam Mustafa (2022 MLD 908), Mir Shams-ud-Din vs. Mir Zia-ud-Din (2025 CLC 130) & Muhammad Siddique Baloch vs. Jehangir Khan Tareen (PLD 2016 SC 97).

21. Arguments heard. Record perused.

22. From the arguments advanced and the record available, the following questions arise for determination:

- i. Whether the instant constitutional petition is maintainable under Article 199 of the Constitution of Pakistan 1973 ?
- ii. Whether the proceedings conducted before the Independent Adjudicator (hereinafter "Adjudicator") and the impugned order dated 27.05.2025 suffer from illegality, violation of due process and prescribed procedure, or lack of reasoning?

23. At the very outset, learned counsel for the respondents-PCB has raised a preliminary objection to the maintainability of the petition, contending that the Constitution of the Pakistan Cricket Board and its regulations are non-statutory in nature and, therefore, matters arising therefrom are not amenable to the constitutional jurisdiction of this Court under Article 199 of the Constitution, and have placed reliance mainly on MUNDA ELEVEN CRICKET CLUB vs. FEDERATION OF PAKISTAN and 4 others (PLD 2017 Lahore 802). To properly resolve this objection, it is

necessary to examine the statutory foundations of the PCB and the legal character of its regulations.

24. The PCB is constituted and functions under the Sports (Development and Control) Ordinance, 1962 (XVI of 1962) (hereinafter “Ordinance”). Under Section 3 of the said Ordinance, the Central Government may, by notification in the official Gazette, constitute a Board for the control of sports in Pakistan. Section 4 provides that the name, constitution, powers, and functions of PCB shall be such as may be determined by the Central Government, and Section 5 confers upon PCB the power to make rules and regulations for carrying its objects into effect. For a ready reference, the aforesaid provisions are reproduced hereunder:-

3. Establishment of the Board.— (1) As soon as may be after the commencement of this Ordinance, the Central Government may, for the purpose of promoting and developing uniform standards of competition in sports in Pakistan comparable to the standards prevailing internationally and regulating and controlling sports in Pakistan on a national basis, by notification in the official Gazette, constitute¹ , one or more boards for the control of Sports in Pakistan.

(2) A Board shall be a body corporate having perpetual succession and a common seal with power to acquire, hold and dispose of property, both movable and immovable.

4. Name, Constitution, Powers and functions of a Board.— The name, Constitution, powers and functions of a Board shall be such as may be determined² by the Central Government.

5. Exclusive right to make Rules for the development, control and uniformity of Sports throughout Pakistan.— A Board may make rules and regulations for carrying its objects into effect.

The PCB Constitution, 2014, which is the constitution restored and operative at the relevant time, was published in the Extra Ordinary Gazette of Pakistan on 30.08.2014. The PCB Election Regulations, 2015 were thereafter framed by the Pakistan Cricket Board in pursuance of the powers conferred by Section 5 of the said Ordinance.

25. The question whether the Constitution of PCB, 2014 and its regulations possess a statutory character sufficient to attract the constitutional jurisdiction of this Court is no longer res integra. Learned Division Bench of the Peshawar High Court (Mingora Bench), while distinguishing the principle held in *Munda Eleven* supra, in the case of AL-FATAH CRICKET CLUB

through President vs. PAKISTAN CRICKET BOARD through Chairman and 4 others (2018 CLC 1427), addressed and resolved the same controversy. The learned Bench repelled the objection regarding maintainability and held that the petition was maintainable, observing that the PCB is a person performing functions under the control of the Federal Government and that the regulations, having been duly published in the official Gazette after approval of the Federal Government, possess statutory character. The relevant extract of the judgment is reproduced hereinafter: -

“7. Learned counsel for the respondents further referred to the status of the present petitioner as non statutory and therefore strongly resisted maintainability of the instant writ petitions. Reliance is placed on 2013 SCMR 314 and an unreported judgment of Lahore High Court passed in W.P No. 59837 of 2017 decided on 23.8.2017.

8. In order to regulate the development and control of sports in Pakistan, an Ordinance known as Sports (Development and Control) Ordinance, 1962 (XVI of 1962), was promulgated on 02.05.1962. Under section 3 thereof the Central Government may by notification in the official Gazette constitute a Board for the control of sports in Pakistan. Under section 4, the name, constitution, powers and functions of a board shall be such as may determine by the Central Government and under section 5, a board may make rules and regulations for carrying its objects into effect.

9. In order to appreciate the controversy as involved in instant writ petition, it would be necessary to consider the relevant provision of Constitution of Pakistan Cricket Board published in the Gazette of Pakistan, Extra on 30.08.2014, wherein an “ACTIVE” club is defined in section 2 (ii), means a cricket club which;

(a) has adopted the model constitution as formulated by the board of Governors within a period of three months from the date of its communication;

(b) has not less than sixteen playing members registered with the District Cricket Association, or as the case may be, zonal cricket Association to which it is affiliated and verified by the scrutiny committee of the board;

(c) has formulated by laws for regulating business and the conduct of its members;

(d) participates in every calendar year in at least two tournaments organized by the District Cricket Association to which it is affiliated or two others tournaments approved or recognized by the Board.

(e) does not belong to any service organization or department;

(f) has the use of a pitch where net practice is regularly held, subject to the satisfaction of the board.

Explanation: For the purpose of this clause, not more than three cricket clubs may use the same pitch and nets; and

g) is not a defaulter of the dues of the concerned District Cricket Association;

10. Under Rule (xxix) the rules is defined to means the rules made by the Board under section 5 of the Sports (Development and Control) Ordinance, 1962 (XVI of 1962). Under para 3 with the heading Pakistan Cricket Board, it is provided that a board to be known as the Pakistan Cricket Board is constituted which shall manage and regulate subject to and in accordance with this constitution by the Chairman, the Board of Governors and the general body, the affairs of the board. Under para 3(2) the Board shall be a body corporate and has been given even the status and character as required for the body corporate. Under para 3(3) the Board shall be the governing body of Pakistan Cricket and its primary aim shall be to promote the game of cricket in Pakistan. Under para 4 the body, the objects, powers and functions of the Board have been laid down and includes promotion, develop, supervise and maintain general control on all forms of domestic and international cricket. Under para 16, the composition of Board of Governors has been given in subsection 1(a) and (b) the different regions have been mentioned from where 04 members are duly elected on the basis of rotation as per applicable regulations to be members of Board of Governors. Under para 13(2), delegation of powers and functions shall not prevent the Board of Governors from concurrent exercise of powers or performance of functions so delegated. Under para 14 composition of Regional Cricket Association is laid down. It has been made a condition precedent for all Regional Cricket Association to adopt the model constitution provided by the Board from the date of communication from the model constitution made by the Board. Under para 14(2), the Regional Cricket Association shall be responsible to promote, develop, regulate and maintain general control of cricket in their respective regions. Under para 14(4) the Regional Cricket Association may receive funds from the Board and also generate funds through their own efforts. Under para 14(5) the electoral college for the elections of Regional Cricket Association shall be the elected representative of District and Zonal Cricket Associations. Under para 15 District and Zonal Cricket Associations are to be formed which shall adopt the model constitution provided by the Board and shall replace their respective constitution within three months of the date of communication of the model constitution made by the Board. Under para 15 (2) the electoral college for the District and Zonal Cricket Association shall be the ACTIVE clubs on the basis of one-club, one-vote. Its provisions also provide for composition of Women Cricket Association, Blind Cricket Council, veterans Cricket Association etc. under para 20, the general body shall recommend to the Board of Governors to admit any eligible Regional Cricket Association, District Cricket Association or service organization to full membership of the board and grant Associate Membership of the Board. Under para 29, appointment of Election Commissioner is provided to discharge such functions as may be prescribed. Under para 29 (5), the Election Commissioner shall have the responsibility for holding and monitoring fair, free and transparent elections under this constitution. Under para 29(6) the Board of Governors on the recommendation of the Chairman and in consultation with the Election Commissioner may appoint one or more Deputy Election Commissioners. Under para 30, the Board shall maintain such bank accounts as may be determined by them. Under para 37, the penal of adjudication is to be appointed for dispute resolution or decision of appeals. Under para 41, the Board may make regulations in accordance with the *ibid* Ordinance of 1962. Under para 41(b), the regulation may provide for holding of elections for Regional Cricket Association or District Cricket Association and clubs including the scrutiny. Under para 45 the Federal Government may, if deems necessary and expedient, make amendment in this constitution by way of repeal, substitution, omission, modification or addition of any provision thereof.

11. Under para 41, the Pakistan Cricket Board on 13.06.2015 unanimously approved the Elections Regulations, 2015, which provides procedure for club elections, procedure for scrutiny of clubs, procedure for District/Zonal/City

Cricket Association Elections and election regulations for the same. It also provides procedure for elections of Regional Cricket Association and vide annexure A, B and C, the forms of nomination etc for the elections and undertaking has been provided. These regulations have been framed by the Pakistan Cricket Board in pursuance to the powers conferred by section 5 of the *ibid* Ordinance. The Federal Government has framed the constitution that has been published in the Extra Ordinary Gazette of Pakistan on 30.08.2014 after duly approved by the Federal Government. Its publication in the gazette confers a statutory status, to the said regulations.

12. The model constitution is stated to be adopted by the petitioner and was duly presented in their documents to the officials of Pakistan Cricket Board at the time of scrutiny. The relevant documents are annexed with the writ petitions which also includes scrutiny assessment forms wherein details and the numbers of players is mentioned. The relevant column shows adaptation of the model constitution through a tick mark.

13. The objection of learned counsel for the respondents, regarding non-maintainability of the writ petition could be aptly met by referring to the publication of Constitutions of 2014 in the Extra Ordinary Gazette of Pakistan duly approved by the Federal Government and as a token thereof signed by Section Officer of the Ministry of Inter Provincial Coordination and so approval of the Federal Government as a *sine qua non* for any rules or regulations to be considered as statutory or non-statutory are fulfilled. The function test to consider whether the rules are statutory or non-statutory is provided in case titled "*Salahuddin v. Frontier Sugar Mill and others* reported as (PLD 1975 SC 144), relevant para is quoted below,

"The primary test must always be the functions entrusted to the organization or person concerned are indeed function of the state involving some exercise of sovereign or published power; whether they control of the organization vest in a substantial manner in a hand of Government; and whether a bulk of the funds is provided by the state. If these conditions are fulfilled then the person including a body politic or body corporate, may indeed to be regarded as persons performing functions in connection with the affairs of the federation or a Province; otherwise not"

14. This view was also affirmed in the case titled "*Atchison College Lahore through Principal v. Muhammad Zubair*" reported as (PLD 2002 SC 326). Honorable Supreme Court of Pakistan yet in another judgment reported as 2013 SCMR 1707 has summarized the said test as under,

"The principles of law which can be deducted from the foregoing survey of the precedent case-law can be summarized as under:--

- (i) Violation of Service Rules or Regulations framed by the Statutory bodies under the powers derived from Statutes in absence of any adequate or efficacious remedy can be enforced through writ jurisdiction.
- (ii) Where conditions of service of employees of a statutory body are not regulated by Rules/Regulations framed under the Statute but only Rules or Instructions issued for its internal use, any violation thereof cannot normally be enforced through writ jurisdiction and they would be governed by the principle of 'Master and Servant'.
- (iii) In all the public employments created by the Statutory bodies and governed by the Statutory Rules/Regulations and unless those appointments are purely contractual, the principles of natural justice cannot be dispensed with in disciplinary proceedings.

- (iv) Where the action of a statutory authority in a service matter is in disregard of the procedural requirements and is violative of the principles of natural justice, it can be interfered with in writ jurisdiction.
- (v) That the Removal from Service (Special Powers) Ordinance, 2000 has an overriding effect and after its promulgation (27th of May, 2000), all the disciplinary proceedings which had been initiated under the said Ordinance and any order passed or action taken in disregard to the said law would be amenable to writ jurisdiction of the High Court under Article 199 of the Constitution.

15. Under Article 199 (1) (a) a High Court, if it is satisfied that no other adequate remedy is provided in law may on the application of any aggrieved party make an order:

"(i) Directing a person performing within the territorial jurisdiction of the court, functions in the connections with the affairs of the federation, a Province or a local authority, to refrain from doing anything he is not permitted by law to do, or to do anything he is required by law to do; and under clause 5, "person" includes any body politic or corporate, any authority of or under the control of the Federal Government or of a Provincial Government, and any court or tribunal, other than the Supreme Court, a High Court or a court or tribunal established under a law relating to the armed forces of Pakistan".

16. Deriving wisdom from the afore quoted provisions, it can be held that the petitioner are aggrieved parties and the Pakistan Cricket Board is a person performing functions under the control of Federal Government so, therefore, the regulations duly published in the official Gazette after approval by the Federal Government are statutory in character and therefore, the instant writ petition is maintainable. Under para 10, the Board of Governor shall include a Federal Secretary, Ministry of Inter Provincial Coordination, Government of Pakistan, as ex-officio member and under para 12, the functions of Board of Governors are provided, however the Pakistan Cricket Board, Elections Regulations, 2015, have been framed and approved by the Board of Governors. The Board of Governors is performing functions in connection with the affairs of the Government; thus its status is statutory in character by all intents and purposes. Reference in this regard can also be made from case titled "Pakistan Telecommunication Company Ltd. v. Muhammad Zahid and others, reported as (2010 SCMR 253), para 18 is quoted below:-

On an identical question relating to the interpretation of the expression 'person' as used in clause (5) of Article 199 of the Constitution of Islamic Republic of Pakistan with reference to the extraordinary powers of the High Court under Article 201 of the Interim Constitution in issuing writ, it was ruled that the High Court can exercise powers only in respect of the 'person' performing, within territorial jurisdiction of the, Court functions in connection with the affairs of the Federation, Province or Local Authority and if the 'person' as defined in clause (5) of the Article whose acts, actions or proceedings before the High Court does not fall within the specified categories then it would clearly be not amenable to the extraordinary jurisdiction of the High Court as held by this Court in the case of Salahuddin and 2 others v. Frontier Sugar Mills and Distillery Ltd., Takht Bhai and 10 others PLD 1975 SC 244.

17. Reliance is also placed on case titled "Shafiq Ahmad Khan and others v. NESCOM through Chairman, Islamabad and others, reported as (PLD 2016 SC 377), relevant para is reproduced as under,

"But a survey of all these judgments would reveal that it is not the sole

criterion which makes them statutory or otherwise. It is indeed their nature and area of efficacy which are determinative of their status. Rules dealing with instructions for internal control or management are treated as non-statutory while those whose area of efficacy is broader and are complementary to the parent statute in the matters of crucial importance are statutory. The Rules framed under sections 7, 9 and 15 of the Act are of that genus or genera as they are not only broader in their area of efficacy but are also complementary to the parent statute in the matters of crucial importance. Yes, these Rules have not been framed with the intervention and approval of the Federal Government, but that would not prevent them from being statutory.”

18.

19.

20. Another bench of this court in case titled, “Kohat Cricket Club v. Pakistan Cricket Board and others” in W.P. No.4453-P/2016 on 17.01.2017 allowed the writ petition and held that the petitioner club had the right to present its member before the scrutiny committee and the decision of respondent No. 4 was considered to be harsh in the given circumstances and the petitioner was considered deserving for being given a second chance. It is also essential to mention that this order was challenged in C.P. No.754 of 2017, before the august Supreme Court of Pakistan and on 26.01.2018 the said petition was dismissed as withdrawn as quoted below,

“After arguing the case at some length, learned counsel for the petitioner wants to withdraw this petition. Dismissed accordingly”.

26. It is pertinent to mention here that the Hon’ble Federal Constitutional Court of Pakistan, in Civil Appeal No.103-K/2024, titled **Muhammad Qutub-ud-Din & others vs. Province of Sindh through Chief Secretary Government of Sindh & others**, has reaffirmed the settled principle that constitutional jurisdiction under Article 199 of the Constitution can validly be invoked against arbitrary or unlawful acts of a statutory authority, even where the relevant service rules or regulations are non-statutory in nature. The relevant observations are reproduced below:

10. It is noted with great importance that the High Court, in para 7 to 10 of the impugned judgment, has adequately addressed the issue of maintainability and has categorically observed that although the Regulations of 2006 are non-statutory in nature, the Constitution Petition under Article 199 of the Constitution was nevertheless maintainable in view of the law laid down by the Supreme Court of Pakistan in *Pakistan Defence Officers’ Housing Authority v. Lt. Col. Syed Jawaid Ahmed* (2013 SCMR 1707) and *Muhammad Rafi and another v. Federation of Pakistan and others* (2016 SCMR 2146). We are in complete agreement with the aforesaid observation of the High Court and affirm the same. The principle laid down in the above-noted judgments clearly establishes that the constitutional jurisdiction under Article 199 of the Constitution may be invoked where the act of a

statutory authority is violative of service rules or regulations, even if such regulations are non-statutory in nature. No doubt, the SESSI, being a statutory body, is performing public functions under the above-noted legal framework. Therefore, the alleged arbitrary exercise of authority by the SESSI, allowing a retrospective regularization to the private respondent and placing him above the employees recruited on a permanent basis during his contractual employment, is well within the settled scope of constitutional jurisdiction. Furthermore, the respondents have failed to demonstrate any jurisdictional defect, lack of competence, or violation of any threshold requirement that would render the Constitution Petition non-maintainable.

(Underlined for supplying emphasis)

27. Further, the learned Single Bench of this court, while entertaining the writ petition under Article 199 of the Constitution in a reported judgment titled as “SHAHDOST DASHTI vs. FEDERATION OF PAKISTAN through Secretary Ministry of Inter-Provincial Coordination Government of Pakistan, through Secretary Pakistan Secretariat” (2019 CLC 1750), set aside the judgment passed by the learned Adjudicator of the PCB and remanded the matter on account of defective service upon the respondents under Order V, Rule 10 CPC before the Adjudicator. The relevant principle is reproduced hereunder:

“7. In this case the service of the petitioner in appeal filed by respondents No.5 has only been made through Express Post Service on his official address by learned Independent Adjudicator, Pakistan Cricket Board but the same has not been sent on his residential address and the petitioner was neither served personally nor through any male member. This Court is restraining itself to observe regarding the choice of the authority to send the notice as it may prejudice the case of either of the party. However, it is not a case of either of the party that the process of issuance of summons was delivered at the residence of the petitioner, but it is claim of the respondents that it was delivered to him in Quetta Cricket Stadium which is not the business place of the petitioner as it is totally against the spirit of the Law with reference to issuance and service of the summons. As per Order V, Rule 10-A and (2), C.P.C. where simultaneously with the issue of summons under Rule 9, there shall be sent, unless otherwise ordered by the Court to the defendant, by registered post, acknowledgement due, another copy of the summons signed and sealed in the manner provided in Rule 10, C.P.C. Furthermore, the service of the petitioner was also not effected as per Order V, Rules 21 and 22, C.P.C., as the summons would not be issued to such defendant directly rather the same would be issued to court in whose jurisdiction he was residing and would be served on him by such court. Furthermore, the service of the petitioner was not personally effected on the address given by the respondents No.5 in the appeal rather the same was received by security guard of the Stadium. It is further noticed that as per Order XIV, Rule 17 of C.P.C., 1908, when the defendant refuses to accept

service, or cannot be found, then in such circumstances, the serving officer shall affix a copy of the summons on the outer door or some conspicuous part of the house in which the defendant ordinary resides or carries on business or personally works for gain. Reliance in this regard is placed on case "Abdul Rehman Wahla v. Dr. Sher Dil Batra" (PLD 1986 Supreme Court 234). It is settled principle of law that where law provided a particular mode for a particular thing to be done in a particular manner, then same should be done in such manner or should not be done at all. Even otherwise the scope of adjudication on merits with rights and civil liabilities has squarely been widened after the insertion of Article 10-A through 18th Amendment, 2010.

8. For the foregoing reasons as well as seeking guidance from the dictums of law laid down by the august Supreme Court of Pakistan in the cases supra, this Court is of the firm view that the impugned judgment dated 06.05.2019, whereby the learned Independent Adjudicator, Pakistan Cricket Board has accepted the appeal under Article 37 of Pakistan Cricket Board filed by respondents No.5, not sustainable in the eyes of law. Hence, the same is set aside. Learned Independent Adjudicator, Pakistan Cricket Board is directed to decide the appeal filed by respondents No.5 afresh after providing proper opportunity of hearing to the petitioner quite in accordance with law. The petition in hand stands disposed-off."

28. The record further reveals that multiple writ petitions under Article 199 of the Constitution, concerning the elections of the Zonal and Regional Cricket Associations of Islamabad, were filed before the learned Islamabad High Court, including W.P. No.711/2024, W.P. No.112/2024, and an application under Section 12(2) C.P.C. filed in W.P. No. 1365/2023. It is noteworthy that, during the proceedings before the learned Islamabad High Court, learned counsel for respondents-PCB did not raise any objection regarding the maintainability of writ petitions against the orders passed by the Election Commissioner of PCB. Rather, the counsel expressly conceded that the limitation period of fourteen (14) days provided under paragraph 37(2) of the PCB Constitution would not be pressed into service so as to obstruct adjudication of the disputes by the Independent Adjudicators appointed under Article 37 of the PCB Constitution.

29. Consequently, with the consent of the learned counsel for respondents-PCB as well as learned counsel for respondents No. 4, 5, and 6, the learned Islamabad High Court, vide order dated 13.05.2024, converted the writ petitions along with the application under Section 12(2) C.P.C. filed by the petitioner into representations and referred the disputes to the learned Adjudicator for adjudication in terms of paragraph 37 of the PCB

Constitution. The impugned judgment before this court was thereafter passed by the learned Adjudicator in compliance with the directions issued by the learned Islamabad High Court in its constitutional jurisdiction.

30. It may not be out of place to mention here that the Indian Supreme Court, while dealing with a similar controversy in M/s Zee Tele Films Ltd. and another vs. Union of India and others (AIR 2005 Supreme Court 2677), held that the High Court possesses powers to issue writs in the nature of prerogative writs and that where a private body performs public functions, even though it may not qualify as a 'State', an aggrieved person is not only entitled to seek remedy under the ordinary law but may also invoke constitutional jurisdiction through a writ petition. The relevant extract of judgment is hereby reproduced below: -

“32. This Court in the case of **Andi Mukta Sadguru Shree Muktajee Vandas Swami Suvarana Jayanti Mahotsav Smarak Trust and others v. V.R. Rudani and others** (1989)2 SCC 691, has held :

“Article 226 confers wide powers on the High Courts to issue writs in the nature of prerogative writs. This is a striking departure from the English law. Under Article 226 writs can be issued to “any person or authority”. The term “authority” used in the context, must receive a liberal meaning unlike the term in Article 12 which is relevant only for the purpose of enforcement of fundamental rights under Article 32. Article 226 confers powers on the High Courts to issue writs for enforcement of the fundamental rights as well as non-fundamental rights. The words “any person or authority” used in Article 226 are, therefore, not to be confined only to statutory authorities and instrumentalities of the State. They may cover any other person or body performing public duty. The form of the body concerned is not very much relevant. What is relevant is the nature of the duty imposed on the body. The duty must be judged in the light of positive obligation affected party, no matter by what means the duty is imposed. If a positive obligation owned by the person or authority to the exists *mandamus* cannot be denied.”

33. Thus, it is clear that when a private body exercises its public functions even if it is not a State, the aggrieved person has a remedy not only under the ordinary law but also under the Constitution, by way of a writ petition under Article 226. Therefore, merely because a non-governmental body exercises some body a State for the purpose of Article 12.”

31. Under these circumstances, the respondents-PCB is estopped from questioning the maintainability of the present petition, particularly when instant election disputes were entertained by the learned Islamabad High Court in its constitutional jurisdiction and referred to the Independent

Adjudicator with the consent of respondents-PCB. Accordingly, in view of the law laid down in *AL-FATAH CRICKET CLUB, Muhammad Qutub-ud-Din & others, SHAHDOST DASHTI and M/s Zee Tele Films Ltd. and another*, supra the objection regarding maintainability of this writ petition is overruled.

32. It is an admitted position that the Federal Government framed the Constitution of the Pakistan Cricket Board (PCB), which was duly approved by the Federal Government and published in the Extraordinary Gazette of Pakistan dated 30.08.2014. Upon its publication in the official Gazette, the said Constitution acquired statutory character and legal force. Although the said Constitution was subsequently replaced by the Federal Government, However, it was later restored through a statutory notification (S.R.O.) dated 22.12.2022 issued by the Federal Government in exercise of powers conferred under Section 3 of the Ordinance 1962. Through the said notification, the Constitution of the Pakistan Cricket Board dated 10.07.2014, as amended from time to time, was restored with immediate effect.

33. Moreover, Paragraph 37 of the aforesaid Constitution provides for the establishment and appointment of an Adjudicator Panel for resolution of disputes and for the adjudication of appeals maintained under the Constitution of PCB. Sub-paragraph (7) of Paragraph 37 mandates that both the Adjudicator and the parties appearing before it shall follow such procedure as may be prescribed by the Board.

34. Furthermore, Paragraph 41 of the PCB Constitution authorizes the Board to make regulations in accordance with the provisions of the Ordinance of 1962. In pursuance of the powers conferred by Section 5 of the said Ordinance, the Pakistan Cricket Board framed various regulations. In this regard, the Board, on 13.06.2015, unanimously approved the Elections Regulations, 2015, which prescribe the procedure for club elections, scrutiny of clubs, elections of District, Zonal and City Cricket Associations, and the conduct of such elections. The said Regulations further provide the procedure for elections of Regional Cricket Associations and prescribe, through Annexures "A", "B" and "C", the requisite nomination and election forms.

35. In view of the foregoing statutory framework, it is evident that the Pakistan Cricket Board performs functions in connection with the affairs of the Federation and derives its authority from statutory instruments. Consequently, the Pakistan Cricket Board is a statutory body for all intents and purposes. It is a settled principle of law that where a statutory authority acts arbitrarily, unlawfully, or in excess of its lawful authority, constitutional jurisdiction under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, can be invoked.

36. Accordingly, it is held that the instant Constitutional Petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, is maintainable against the impugned judgment rendered by the learned Adjudicator in exercise of jurisdiction vested under paragraph 37 of the Constitution of the Pakistan Cricket Board. Since the authority exercised by the learned Adjudicator emanates from and is founded upon a statutory constitutional framework, the impugned decision is amenable to judicial review in the exercise of this Court's constitutional jurisdiction.

37. From perusal of the record annexed with the present petition, it transpires that while submitting replies to the appeals preferred by respondents No.4, 5, and 6, the respondents-PCB raised specific and substantial preliminary objections with regard to the maintainability of the said appeals. The respondents PCB categorically asserted that the controversies agitated by respondents No.4, 5, and 6 did not fall within the limited and specific appellate jurisdiction contemplated under paragraph 37 of the PCB Constitution. It was further contended that, having regard to the nature of the grounds urged and the relief claimed in the prayer clauses, the learned Adjudicator lacked the jurisdictional competence to entertain and adjudicate upon the said appeals, as the matters raised therein were allegedly beyond the ambit of an appeal envisaged under paragraph 37(2) of the PCB Constitution.

38. More importantly, in paragraph No. 7 of the written reply, the respondents-PCB specifically pointed out that respondents No.4, 5, and 6 had committed a serious procedural defect by failing to implead the necessary and proper parties whose rights and interests were directly affected by the

outcome of the proceedings. It was further maintained that such omission effectively deprived those affected parties of their valuable right to hearing and opportunity to defend their vested interests, thereby offending the settled principles of natural justice.

39. Perusal of the impugned judgment reveals that none of the aforesaid preliminary objections raised by the respondents-PCB was adverted to, framed for determination, or adjudicated upon by the learned Adjudicator before proceeding to decide the matter on merits. It is a settled principle of law that objections relating to maintainability, jurisdiction, and non-joinder of necessary parties strike at the very root of the proceedings and are required to be decided at the threshold before entering upon the merits of the controversy.

40. The failure of the learned Independent Adjudicator to first determine these foundational objections has rendered the entire exercise legally flawed and procedurally irregular. The superior Courts have consistently held that where jurisdictional and maintainability objections remain undecided, any subsequent adjudication on merits is rendered unsustainable in law. Accordingly, the impugned judgment, having been passed in disregard of these settled legal principles, suffers from material illegality.

41. Furthermore, perusal of the impugned judgment reflects that various objections were raised by the petitioner before the learned Independent Adjudicator. Although the judgment was ultimately passed in absence of learned counsel for the petitioner, on the basis of the reply filed by the petitioner, none of the objections so raised was considered or addressed by the learned Adjudicator before proceeding to decide the matter on merits. It was the duty of the learned Adjudicator to deal with and adjudicate upon all objections raised by the parties prior to rendering findings on the merits of the case.

42. The course adopted by the learned Islamabad High Court, vide order dated 13.05.2024, whereby the writ petitions along with the application under Section 12(2) C.P.C. filed by respondents No. 4, 5, and 6 were converted into representations and referred to the learned Independent

Adjudicator for adjudication in terms of paragraph 37 of the PCB Constitution, was for the reason that the disputes pertained to elections of the Zonal and Regional Cricket Associations. The disputes involved various questions relating not only to the manner in which the Election Commissioner of PCB conducted the elections, but also to the outcome thereof. The learned Islamabad High Court further observed that such controversies required recording and leading of evidence before the learned Independent Adjudicator, as a Constitutional Court does not ordinarily undertake the exercise of recording evidence. For the said purpose, a period of two months was also granted to the learned Independent Adjudicator for adjudication of the disputes.

43. Furthermore, Clause (viii) relating to the “Conduct of Proceedings before Independent Adjudicators” of PCB provides that on the date fixed by the Adjudicator, the parties shall appear either in person or through counsel, shall examine each other’s witnesses, and advance arguments. It further provides that in case of non-appearance of any party, unless cogent reasons are shown, ex-parte proceedings may be conducted and a decision may be passed in absence of such party. Likewise, where any party fails to produce its witnesses on the date fixed, the Adjudicator shall have the authority to close the right of evidence of such party.

44. However, from the perusal of the impugned judgment, it is evident that the learned Adjudicator neither fixed the case for recording of evidence nor did he direct the parties to produce their witnesses. Moreover, prior to passing the impugned judgment against the petitioner, no ex-parte proceedings were initiated against the petitioner in the manner prescribed by law. Thus, the learned Adjudicator failed to adhere to the mandate and directions issued by the learned Islamabad High Court, which were binding upon him. The directions issued by the learned Islamabad High Court did not leave any discretion with the learned Independent Adjudicator to dispense with the recording of evidence in matters requiring factual determination. Consequently, by passing the impugned judgment without recording evidence of the parties, the learned Independent Adjudicator committed a material illegality and jurisdictional irregularity.

45. Moreover, perusal of the impugned Judgment dated 27.05.2025 reveals that the learned Independent Adjudicator proceeded to decide the controversy primarily on the basis of submissions made by learned counsel for the respondents and the pleadings filed before him, without undertaking any proper evidentiary exercise. Although the impugned judgment contains findings regarding alleged manipulation of voters' lists, alteration of zones, and conflict of interest attributed to the petitioner, it does not disclose the evidentiary material on the basis of which such findings were recorded.

46. The record further reflects that the learned Adjudicator proceeded to declare the voter list dated 09.03.2023, as well as the elections of the Central, North, West, and East Zones of the Cricket Associations, Islamabad to be null and void. This course was adopted notwithstanding the fact that election notifications dated 16.03.2023 and 17.03.2023 had already been issued by the Election Commissioner, PCB, whereby the respective office bearers had been duly declared elected unopposed and the electoral process had attained finality.

47. It is noteworthy that the said elected office bearers, whose rights, status, and vested interests stood directly affected by the impugned proceedings, were neither impleaded as necessary and proper parties in terms of Order I Rule 10 C.P.C., nor were they afforded any opportunity of hearing before adverse findings were recorded against them. This omission assumes greater significance in view of the specific objection raised by the respondents-PCB in paragraph No.7 of its written statement before the learned Adjudicator, wherein the defect of non-joinder of necessary parties had been expressly highlighted.

48. It is a settled principle of law that where rights and interests of co-sharers, stakeholders, or persons directly affected by the outcome of proceedings are involved, such persons constitute necessary parties and no adverse order can lawfully be passed behind their back. The learned Division Bench of the Mingora Bench (Dar-ul-Qaza) Swat in case titled "Mianguil Aurangzeb and others vs. Mst. Bakht Zeba and others" (PLJ 2017 Peshawar 123) while dealing with the question of non-impleadment of necessary parties

and the legality of orders passed in violation of the principles of natural justice, held that:

“9. The golden principle of natural justice is that no one should be condemned unheard is applicable in every statute and in every case. It is again settled law that a decision made in violation of the principle of natural justice, would be unlawful, illegal and void *ab initio* and will not be binding on the aggrieved party. Void order under the law is no order in the eye of law. It is settled law that there is no limitation to challenge a void order; however, that must not be left unchallenged. While reverting back to the facts and circumstances of the case in hand by applying the above said settled principles of law, we are unanimous to opine that the applications made by both the ladies by selecting the lands for themselves would reveal that the other co-owners /co-sharers were not made parties to those applications. The decisions made by the officials thereon behind the back of the petitioners/other co-owners are no orders/decisions in the eye of law and such orders/decisions in the circumstances would be void *ab initio*. So, there would be no limitation to challenge the same. Reliance in this regard can be placed on the case of “*Evacuee Trust Property Board and others vs. Mst. Sakina Bibi and others*” 2007 SCMR 262, “*Muhammad Shafi vs. Mushtaque Ahmad through legal Heirs and others*” 1996 SCMR 856 and “*Land Acquisition Collector Nowshera and others vs. Sarfaraz Khan and others*” PLD 2001 Supreme Court 514 *Supra*.”

(Underlined for supplying emphasis)

49. Once an election attains finality, the same cannot be annulled or invalidated in a casual manner, particularly in absence of the elected office bearers being impleaded as necessary and proper parties to the proceedings. Any adjudication adversely affecting their vested rights, status, and legal interests, without affording them an opportunity of hearing, is patently violative of the settled principles of natural justice, particularly the rule of audi alteram partem.

50. The impugned judgment appears to have been passed without associating the affected office bearers in the lis and without recording any finding based upon clear, cogent, legally admissible, and confidence-inspiring evidence demonstrating illegality, mala fide, or material irregularity in the conduct of the electoral process. It is a settled principle that concluded elections carry a presumption of validity and sanctity, which cannot be disturbed except on the basis of strict proof supported by unimpeachable

evidence. Mere conjectures, allegations, or procedural objections, unsupported by substantive material, do not furnish lawful justification for setting aside an electoral process already concluded in accordance with law.

51. Furthermore, the impugned Judgment offends the constitutional guarantees enshrined under Articles 4 and 10-A of the Constitution of the Islamic Republic of Pakistan, 1973, which mandate that every person shall be treated strictly in accordance with law and shall be entitled to due process and fair trial. Any order passed in violation of these constitutional safeguards is coram non judice, without lawful authority, and legally unsustainable. The august Supreme Court of Pakistan in case titled “Mst. KARIM BIBI and another vs. DEPUTY COMMISSIONER/COLLECTOR, RAHIM YAR KHAN and others” (1999 SCMR 2774), while dealing with the effect of orders passed without impleading and hearing persons whose vested rights stood directly affected, held as under: -

“8. The legal proposition is by now well-settled that wherever any person or body of person is empowered to take decision particularly disposing of the controversy like the one herein by the Board of Revenue which had definitely affected prejudicially the person, property or other right of another person, then in the absence of any express words in the enactment giving such powers even excluding the application of the principle of natural justice, the Courts of law are inclined generally to imply that the powers so given coupled with the duty to act in accordance with such principle of natural justice as may be applicable in the facts and circumstances of given case are available. (See The University of Dacca through its Vice-Chancellor and another v. Zakir Ahmed (PLD 1965 SC 90).

9. On merits, the point raised in the writ petitions, thus, falls within the principle laid down by this Court in the case of Dina Sohrab Katrak (PLD 1959 SC 45) and the case of University of Dacca v. Zakir Ahmed (Supra). The impugned orders of the Board of Revenue and those of the High Court maintaining the impugned orders cancelling allotment of land to the appellants without either impleading them as a party or hearing them cannot, therefore, be upheld.”

(Underlined for supplying emphasis)

52. Moreover, the allegations pertaining to the alleged manipulation of voter lists, as well as the inclusion or exclusion of certain cricket clubs, undeniably involved complex and disputed questions of fact relating to the status of clubs, scrutiny of membership, eligibility of voters, and compliance with the prescribed electoral framework. Such controversies could not have

been conclusively determined on the basis of mere assertions, unverified allegations, or summary proceedings, but required a full-fledged inquiry through the proper recording of evidence and affording the affected parties an adequate opportunity to substantiate their respective claims.

53. The findings recorded in the impugned judgment to the effect that the scrutiny of cricket clubs, as stated to be required under Regulation 1 of the PCB Election Regulations, 2015, had not been conducted and that the impugned elections were held without fresh scrutiny, appears to have been rendered without proper examination of the official record of the PCB. Likewise, observations regarding the status of respondent No.4, including the assertion that his name had remained present in the voter lists for the elections of 2010, 2013, and 2017, as well as in the scrutiny process of 2022, and that the same was subsequently removed by the then Management Committee, could not lawfully have been determined merely on the basis of verbal assertions advanced by respondents No. 4, 5, and 6.

54. Admittedly, the impugned judgment is silent as to whether the aforesaid findings were returned after requisitioning, examining, and associating the relevant official record of the PCB, or whether the same were based solely upon unverified submissions and pleadings of the contesting respondents. Such omission assumes considerable importance in view of the admitted position that the electoral process concerning approximately 55 District Cricket Associations was conducted on the basis of voter-club data available with the PCB prior to August, 2019. The record further reflects that an opportunity had been extended to all concerned clubs to point out any error, omission, or grievance by approaching the PCB Election Commission, and public notices/press releases dated 8.3.2023, in this regard had also been circulated through the media to ensure transparency and the conduct of free and fair elections.

55. Under these circumstances, the questions as to whether respondents No. 4, 5, and 6 were eligible voters and whether their names existed in the official PCB data prior to August, 2019, constituted disputed factual matters which could only have been conclusively determined after consultation, production, and examination of the official PCB record. The failure of the

learned Adjudicator to undertake such an essential exercise has deprived the findings of any lawful evidentiary basis.

56. Even otherwise, it is an admitted position on the record that the electoral process concerning approximately 55 District Cricket Associations was conducted by the Election Commission of PCB on the basis of voter-club data available with the PCB prior to August, 2019. Despite this admitted factual position, the learned Adjudicator, while setting aside the voter list issued on 09.03.2023, proceeded to invalidate only the elections of the four Zones of the Islamabad Cricket Association. However, the election and notification pertaining to the Gilgit-Baltistan Zone remained intact and was neither set aside nor even adverted to by the learned Adjudicator.

57. The record further reflects that the Gilgit Baltistan Zone had also participated in the Electoral College and had cast its vote in the election of the RCA, Islamabad, as a consequence whereof the petitioner was elected as President. Therefore, so long as the election notification relating to the Gilgit Baltistan Zone continued to hold the field and remained valid and operative, the notification dated 24.03.2023 pertaining to the election result of the Regional Cricket Association Islamabad could not legally have been declared null and void merely on the basis that certain notifications relating to other Zonal Cricket Associations had been set aside.

58. The impugned judgment does not disclose any lawful reasoning as to how the election of the Regional Cricket Association Islamabad could be invalidated in toto despite the continued existence and validity of at least one constituent zonal election forming part of the Electoral College. Most importantly, the whole election of other Zones and Regional Cricket Associations was conducted by the PCB on the same scrutiny and voter list and only to the extent of Islamabad Zone, it declared the result null and void. Such selective and partial invalidation of the electoral process, without addressing its legal consequences or providing cogent reasons, renders the findings internally inconsistent and legally unsustainable.

59. The findings recorded in the impugned judgment to the effect that the elections were conducted by the Election Commissioner, PCB, in

violation of the injunction order dated 22.03.2023, and that the election of the RCA, Islamabad, wherein the petitioner was elected as President, had allegedly been held in disregard of the orders of the learned Islamabad High Court under the supervision of the Management Committee, have no lawful basis borne out from the record. The learned Independent Adjudicator further treated the alleged disobedience of the order of the learned Islamabad High Court as one of the grounds for declaring the election process null and void.

60. Prima facie, such findings travel beyond the scope of jurisdiction vested in the learned Adjudicator. If, according to the allegations, the Election Commissioner, PCB, had acted in willful disobedience of the injunction order dated 22.03.2023 passed by the learned Islamabad High Court, the matter squarely fell within the exclusive domain and jurisdiction of the learned Court itself to examine whether any contempt or disobedience of its order had been committed and, if so, to initiate appropriate contempt proceedings against the alleged contemnor(s) in accordance with law. Admittedly, no such contempt proceedings were initiated by the said learned Court, nor is there anything available on the record to indicate that the learned High Court had ever recorded any observation holding that its order had been violated.

61. Furthermore, while referring the dispute to the learned Independent Adjudicator for adjudication, the learned Islamabad High Court has never conferred any mandate upon the learned Adjudicator to examine or adjudicate upon the question of alleged disobedience of the High Court's order dated 22.03.2023. In the absence of any such authorization or jurisdictional mandate, the learned Independent Adjudicator could not have assumed unto himself the authority to determine whether the orders of the learned High Court had been violated and to invalidate the election process on that basis.

62. It is a settled principle of law that a subordinate forum or quasi-judicial authority cannot assume jurisdiction beyond the scope expressly conferred upon it, nor can it adjudicate matters falling exclusively within the constitutional and contempt jurisdiction of the superior Courts. Any finding rendered without lawful jurisdiction is coram non judice and without legal effect. Consequently, the aforesaid findings of the learned Independent Adjudicator are wholly erroneous, beyond jurisdiction, and devoid of any

legal foundation, rendering the impugned judgment unsustainable in the eye of law.

63. Admittedly, the petitioner was appointed as a Member of the Management Committee vide notification dated 31.12.2022 issued by the Federal Government of Pakistan. From perusal of the said notification reflects that specific functions and responsibilities were assigned to the Management Committee for a limited period of 120 days. The record further reveals that the elections in question were conducted by the Chief Election Commissioner of the PCB and not by the Management Committee itself.

64. Significantly, nothing has been brought on record to demonstrate that any provision contained in the PCB Constitution, Election Regulations, or any other governing framework imposed a legal bar upon members of the Management Committee preventing them from contesting elections, nor has any material been produced to establish the existence of a statutory or regulatory conflict of interest in this regard. Rather, the available record indicates that two other members of the same Management Committee had also contested the elections and were elected as Presidents of the Regional Cricket Associations Peshawar and Larkana respectively, which fact prima facie reflects that no such disqualification or prohibition was understood to exist within the governing electoral framework.

65. Despite the above admitted position, the learned Independent Adjudicator proceeded to hold that the petitioner, merely by virtue of being a member of the Management Committee, suffered from a conflict of interest in contesting the election and assuming the office of President, Regional Cricket Association Islamabad. The impugned judgment, however, does not refer to any specific provision of the PCB Constitution, Rules, Regulations, or any governing law creating such disqualification or conflict of interest. Nor does the judgment disclose any legal reasoning or evidentiary basis justifying the selective application of such principle exclusively against the petitioner while similarly placed individuals were neither proceeded against nor disqualified.

66. It is a settled principle of law that adverse findings affecting civil and electoral rights must be founded upon an express legal provision,

supported by lawful reasoning and evidentiary material. Findings based merely upon presumptions, subjective considerations, or notions unsupported by the governing statutory framework cannot sustain judicial scrutiny. Likewise, selective and discriminatory application of standards to one individual, without any lawful distinction, offends the principles of fairness, equality, and due process.

67. Consequently, the findings recorded by the learned Independent Adjudicator regarding the alleged conflict of interest of the petitioner are without lawful authority, unsupported by any statutory provision or legal basis, and therefore unsustainable in the eye of law.

68. While rendering the impugned judgment, the learned Independent Adjudicator failed to record any cogent, clear, or reasoned findings while adjudicating upon the application under Section 12(2), which had been referred by the learned Islamabad High Court for lawful determination. The impugned judgment does not demonstrate proper consideration of the material questions involved, nor does it disclose the reasoning process on the basis whereof the conclusions were reached.

69. Furthermore, clause 6 governing the proceedings before the learned Adjudicator specifically provides that the Adjudicator “will give reasons” for the order passed. The use of expression “will give reasons” unmistakably reflects the legislative intent that every order or judgment rendered by the learned Adjudicator must be supported by cogent, intelligible, and legally sustainable reasons. Recording of reasons is not a mere formality, rather, it constitutes an essential component of lawful adjudication, transparency, fairness, and judicial accountability.

70. It is a settled principle of law that reasoned judgments are the hallmark of judicial and quasi-judicial proceedings. Reasons are required to demonstrate proper application of mind, to enable the parties to understand the basis of the decision, and to facilitate effective judicial review by the superior Courts. An order devoid of reasons is treated in law as an arbitrary exercise of authority and cannot sustain judicial scrutiny.

71. In the present case, the impugned judgment suffers from a manifest absence of reasoned findings as mandated under clause 6 and, therefore, stands vitiated on this ground alone, rendering the same legally unsustainable in the eye of law.

72. It is an established principle that where adjudication of disputed questions of fact is required, the decision must be supported by affirmative evidence and not merely by conjectures or assumptions. The Hon'ble Supreme Court in case titled "Muhammad Siddique Baloch vs. Jehangir Khan Tareen and others" (PLD 2016 SC 97) emphasized that findings affecting the validity of an election must rest upon credible and affirmative evidence. It was held as under: -

"15.The earliest case on the subject is Muhammad Saeed v. Election Petitions Tribunal, West Pakistan, etc. (PLD 1957 SC 91) which holds that each ingredient of the misdemeanor of corrupt or illegal practices must be affirmatively proved by direct or circumstantial evidence. Circumstantial evidence is to be believed if all reasonable hypotheses which are consistent with the non-commission of corrupt or illegal practices have been excluded. The said rule has been reiterated with approval in Muhammad Yusuf v. S.M. Ayub (PLD 1973 SC 160) and in Muhammad Afzal v. Muhammad Altaf Hussain (1986 SCMR 1736).

16. In the present case, there is no circumstantial, let alone, any direct evidence implicating the appellant in the commission of corrupt or illegal practices during his election. Only an inferential allusion in the submissions by the learned counsel for the election petitioner is suggested to entangle the appellant. The half heartedness of the suggestion itself indicates the weakness of any merit in the learned Tribunal's finding that the appellant is guilty of committing corrupt or illegal practices during the general election in constituency NA-154 Lodhran-I. Correspondingly, there cannot be any finding that the result of the said election is vitiated by such practices under Section 68(1)(d) or Section 70(b) of the ROPA."

73. It is also pertinent to observe that the learned Independent Adjudicator, while deciding disputes arising under the same PCB electoral framework relating to the Regional Cricket Association, Faisalabad, vide judgment dated 10.11.2025, impugned in connected W.P. No.1592 of 2026, adopted an entirely different approach in the exercise of adjudicatory jurisdiction. In the said matter, the controversy had arisen from the rejection of nomination papers of a candidate, however, the learned Adjudicator declined to reopen or interfere with the election process on the ground that the appellant had participated in the election proceedings and had failed to challenge either the scrutiny process or the election schedule at the relevant

stage. Consequently, it was held therein that the appellant, having acquiesced in the process, was estopped from subsequently questioning the validity of the election, and the appeal was accordingly dismissed.

74. A comparative examination of the aforesaid adjudicatory orders reveals a manifest inconsistency in the approach adopted by the learned Adjudicator while dealing with disputes emanating from the same electoral framework. In the present matter, the learned Adjudicator proceeded to invalidate the entire electoral process, including concluded elections and duly issued notifications, on the basis of alleged irregularities concerning voter lists, zoning, and club status. Conversely, in the Faisalabad matter, interference with the electoral process was declined principally on the ground that the aggrieved party had participated in the election proceedings and had failed to raise objections at the appropriate stage.

75. Such divergent and inconsistent approaches in adjudication of disputes arising under the same regulatory regime reflect the absence of a uniform and settled procedural standard governing the exercise of adjudicatory jurisdiction. The inconsistency assumes greater significance where valuable electoral and civil rights are involved, as similarly situated parties are entitled to equal treatment under the law and consistency in judicial and quasi-judicial decision-making.

76. It is a settled principle that findings affecting electoral rights and the validity of concluded elections must be founded upon a transparent, structured, and legally sustainable process supported by cogent reasoning, proper appreciation of evidence, and uniform application of legal principles. Any departure from consistency in adjudication, particularly without distinguishing features or lawful justification, undermines the certainty, predictability, and fairness required in quasi-judicial proceedings. Consequently, the impugned judgment warrants strict judicial scrutiny on this count as well.

77. For the foregoing reasons, the instant Constitutional Petition is hereby allowed. Consequently, the judgment dated 27.05.2025 passed by the learned Independent Adjudicator, Pakistan Cricket Board (PCB), being

devoid of lawful reasoning and suffering from material legal and procedural infirmities, is hereby set aside.

78. As a necessary consequence thereof, the consequential/implementing letter dated 28.05.2025 issued by respondent No.1 is also declared to be without lawful authority and is hereby set aside.

79. Resultantly, the voter list dated 09.03.2023 is restored, along with the election notifications dated 16.03.2023 and 17.03.2023 relating to the office bearers of the respective Zonal Cricket Associations, as well as the notification dated 24.03.2023 pertaining to the election of the Regional Cricket Association Islamabad. The elections conducted pursuant thereto shall hold the field in accordance with law.

80. However, the Pakistan Cricket Board (PCB) is directed to ensure that, prior to the conduct of future elections, the process of scrutiny, preparation of voter lists, and determination of club status and voter eligibility is undertaken strictly in accordance with the applicable Rules, Regulations, and Electoral Framework of the PCB, so as to ensure transparency, fairness, and avoidance of future disputes.

**(MALIK JAVID IQBAL WAINS)
JUDGE**

Approved For Reporting

JUDGE

The judgment was announced in Open Court on 10.03.2026, and after completion of file the same was signed on 09.06.2026.

USMAN*